

The Minnesota Digital Due Process Act

(LEGISLATIVE BRIEF — migrated from LegislativeBrief.md)

The Minnesota Digital Due Process Act

Preserving Constitutional Protections in Automated Government Decision-Making

Prepared for Members of the Minnesota Legislature

Executive Summary

Government agencies increasingly utilize automated systems, predictive analytics, artificial intelligence, risk-scoring tools, and algorithmic decision-support systems.

These technologies may improve efficiency, reduce costs, identify fraud, allocate resources, and assist public servants in carrying out their duties.

However, as these systems become more sophisticated, questions arise regarding transparency, accountability, due process, and constitutional protections.

The purpose of the Minnesota Digital Due Process Act is not to prohibit the use of artificial intelligence or predictive technologies.

Instead, the Act establishes a simple principle:

No individual should be subjected to a material adverse governmental action solely on the basis of an automated prediction, algorithmic determination, or risk score without meaningful human review and independent supporting evidence.

The proposal preserves governmental flexibility while ensuring that constitutional safeguards remain effective in a data-driven environment.

Background

Historically, governmental decisions affecting rights, benefits, property, liberty, and opportunities have been made by accountable public officials operating within established legal standards.

Increasingly, agencies utilize digital systems capable of:

- Predicting future behavior.
- Assigning risk classifications.
- Detecting anomalies.
- Identifying patterns.
- Prioritizing investigations.
- Screening eligibility.

Such systems may provide substantial public benefit.

However, they also create the possibility that individuals may experience significant consequences based upon opaque computational processes that are difficult to understand, challenge, or review.

As reliance upon automated systems increases, legal frameworks must ensure that constitutional protections remain meaningful.

Constitutional Foundations

Due Process

The Fifth and Fourteenth Amendments prohibit governmental deprivation of life, liberty, or property without due process of law.

Due process traditionally requires:

- Notice.
- Opportunity to respond.
- Fair procedures.
- Accountability.

Automated decision systems do not eliminate these requirements.

When a governmental action materially affects an individual, meaningful procedural safeguards should remain available regardless of the technology utilized.

Equal Protection

Governmental decisions should be based upon lawful standards applied fairly and consistently.

Automated systems may unintentionally replicate historical biases, data errors, or statistical distortions.

Human review provides an important safeguard against unintended discriminatory outcomes.

Presumption of Individual Accountability

American legal traditions generally evaluate individuals based upon actions, evidence, and conduct.

Predictive technologies introduce the possibility of governmental decisions influenced by anticipated future behavior rather than established facts.

This proposal reaffirms that predictions may inform decisions but should not replace individualized evidence.

Fourth Amendment Principles

Although the proposed legislation is not a surveillance bill, the increasing availability of large-scale data collection and behavioral monitoring raises broader concerns regarding privacy and governmental power.

The Act reflects the principle that technological capability alone should not reduce constitutional protections.

Problem Statement

Current law often provides limited guidance regarding:

- Algorithmic risk scoring.
- Automated eligibility determinations.
- Predictive classification systems.
- AI-assisted governmental actions.
- Large-scale behavioral inference.

Many citizens are unaware when automated systems influence decisions affecting them.

In some circumstances, individuals may have little ability to understand or challenge algorithmically generated conclusions.

The absence of clear standards risks undermining public trust in governmental institutions.

Proposed Legislative Solution

The Minnesota Digital Due Process Act would establish the following protections:

1. Human Review Requirement

No material adverse governmental action may be based solely upon an automated determination.

Qualified personnel must independently review relevant information before final action is taken.

2. Independent Supporting Evidence Requirement

Automated outputs may assist decision-making.

However, adverse governmental action must be supported by independent evidence beyond algorithmic prediction alone.

3. Notice Requirement

Individuals must be informed when automated systems materially contribute to consequential governmental decisions.

4. Right to Review

Individuals should have a reasonable opportunity to challenge materially consequential automated determinations.

5. Agency Accountability

Government agencies utilizing automated decision systems should maintain documentation sufficient to permit oversight, auditing, and review.

Examples

The Act would permit:

- ✓ Fraud detection systems.
- ✓ Investigative leads generated by AI.
- ✓ Risk analysis tools.
- ✓ Resource allocation systems.
- ✓ Public safety analytics.
- ✓ Administrative decision-support tools.

The Act would not permit:

- ✗ Denial of benefits solely because an algorithm assigned a risk score.
 - ✗ Government sanctions based solely upon predictive classifications.
 - ✗ Adverse actions supported only by automated determinations.
 - ✗ Automated decisions without meaningful human review.
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Anticipated Questions

Does this prohibit artificial intelligence?

No.

The Act permits broad governmental use of artificial intelligence and predictive systems.

It requires only that consequential decisions remain accountable to human review and supported by evidence.

Will this increase costs?

Implementation costs are expected to be limited because most agencies already maintain review procedures for significant determinations.

The Act primarily clarifies minimum procedural standards.

Does this hinder public safety?

No.

Law enforcement and public safety agencies may continue utilizing predictive technologies as investigative or analytical tools.

The proposal governs how those tools may be used when making consequential governmental decisions affecting individual rights.

Why is legislation needed now?

Artificial intelligence capabilities continue to advance rapidly.

Establishing clear procedural standards before widespread deployment may reduce future

litigation, improve public trust, and provide agencies with clearer operational guidance.

Legislative Findings

The Legislature finds that:

1. Constitutional protections apply regardless of technological medium.
 2. Automated systems are increasingly utilized in governmental decision-making.
 3. Human accountability remains essential to democratic governance.
 4. Individuals should not be subjected to adverse governmental actions solely because of automated predictions.
 5. Public confidence in governmental institutions depends upon transparency, fairness, and meaningful procedural safeguards.
 6. Artificial intelligence should enhance, rather than replace, constitutional due process.
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Conclusion

The Minnesota Digital Due Process Act does not restrict technological innovation.

Instead, it affirms a foundational principle of American government:

Technology may assist decision-makers, but constitutional accountability must remain human.

As government increasingly relies upon artificial intelligence and predictive systems, Minnesota has the opportunity to establish clear, balanced standards that preserve both innovation and individual liberty.